

24STCP04111 24STCP04111

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Case Number: 24STCP04111 Hearing Date: June 30, 2026 Dept: 836

X'ANIA WILLS,

Petitioner,

Case No.

24STCP04111

vs.

HACLA,

Respondent.

[TENTATIVE] RULING ON VERIFIED PETITION FOR WRIT
OF MANDAMUS

Dept. 836 (Hon. Curtis A. Kin)

Petitioner

X'Ania Wills petitions for a writ of mandate directing respondent HACLA to set aside the decision terminating her Section 8 subsidy.

I. BACKGROUND

The

federal government funds a rental voucher program designed to help low-income families make housing payments. (Crooks v. Housing Authority of City of Los

Angeles (2019) 40 Cal.App.5th 893, 903.) Respondent HACLA is the local public housing agency that administers the rental voucher program in the City of Los Angeles. (Ibid.; 24 CFR § 982.551; AR 294- 96.)

A.

Petitioner's

Interactions with HACLA

Petitioner

was first admitted into the Section 8 Program on August 1, 2022 as a family member of her mother's Section 8 voucher. (AR 197 [Investigative Report]; AR 283 [HACLA Note History].) In addition to requesting that petitioner be added as a family member, petitioner's mother requested that petitioner be listed as head-of-household. This status was updated on June 28, 2022, and became effective on August 1, 2022. (AR 283.)

On

April 17, 2023, petitioner submitted HACLA's HAP-27P Eligibility Questionnaire for Participants following the passing of her mother, Grace Willis. (AR 198; 254 [HAP-27P Form]; AR 282.) On that form, petitioner answered "NO" to the question: "Do you or any household member own or operate a business or are self-employed?" (AR 198, 256.) Petitioner answer "YES" to the question: "Do you or any household member own or have a legal interest in any type or property (real estate, mobile home, and/or land)?" (AR 198, 255.) Petitioner, however, left blank the lines for responses to the follow-up instructions immediately following, which state "If yes, please provide" information for "Household member name," "Real Estate Address," and "Value \$" of the property. (AR 198, 255.) Petitioner signed the HAP-27P form under penalty of perjury on April 14, 2023. (AR 260.) On the same day, petitioner also signed HALCA's HAP-149 Section 8 Family Obligations form, which states as an obligation that "THE FAMILY MUST NOT . . . SUBLEASE or LEASE or charge someone else rent for the unit or a part of the unit." (AR 261 [HAP-149 Form].)

B.

Investigation

On

June 20, 2023, the HACLA Section 8 staff submitted a referral to HACLA's fraud unit based on allegations that petitioner allowed an unauthorized tenant to reside in the subsidized premises, that petitioner vacated the subsidized

premises to reside in her own property, and that petitioner failed to report her pecuniary interest in her personal business.[1]

(AR 197.) An investigation was initiated on January 3, 2024 by Special Investigative Unit Investigator John Coppola. (AR 196, 197.) Through his investigation, Coppola confirmed the allegations through database records and recommended termination or petitioner's Section 8 assistance. (AR 27-28 [Interoffice Memorandum]; AR 198 AR 204-27 [Grant Deed of Petitioner's Ownership of Real Property]; AR 228-234 [Real Property Details]; AR 236-240 [California Secretary of State Statement of Information re: Cosmotique Inc.]; AR 243-246 [Bank of America Statement re: Cosmotique Inc. for March 31, 2023]; AR 248-252 [Petitioner's Credit Report]; AR 264-269 [Proof of Petitioner's Use of an Unsubsidized Premises]; AR 271-277 [Proof of the Unauthorized Tenant's Use of the Subsidized Premises].) Coppola also concluded that petitioner received an overpayment of \$9,606 from April 2023 through February 2024 due to fraud. (AR 198, 288.)

On

March 19, 2024, HACLA provided petitioner with notice of its intent to terminate her participation in the program based on evidence that petitioner "committed fraud in connection with a federal housing program," "failed to provide true and correct information," vacated the subsidized premises, allowed an unauthorized tenant to reside there, and failed to disclose to HACLA that she owned a business. (AR 185.)

C.

Informal

Hearing

Petitioner

requested an informal hearing. (AR 27.) A hearing was initially held on July 28, 2024, but petitioner failed to appear. (AR 3 [7/29/24 Hearing Transcript].) A subsequent hearing was held on August 27, 2024, and petitioner did appear. (AR 54 [8/27/24 Hearing Transcript].) During the hearing, Coppola provided testimony on behalf of HACLA, and both petitioner and her daughter, Ania Ooten, testified. Petitioner testified that she and her cousin did not reside at the Section 8 subsidized premises and that she did not know the exact location of where her cousin resides. (AR 67-72.) On this issue, petitioner's daughter represented that petitioner had not been the one to allow the cousin to use the subsidized premises and that the owner of the subsidized premises had been seeking help from her to remove the cousin from the premises. (AR 89-90.)

Petitioner

also acknowledged that she owned a separate real property that she lived in and claimed that she never had an opportunity to reside in the subsidized premises due to her late-mother's illness and subsequent passing. (AR 72-77.)

Petitioner

further acknowledged that she has a pecuniary interest in the hair salon business Cosmotique, LLC, which she claimed belong to all the stylists, but she stated that the business was listed under her name because of her good credit. (AR 78-82) She indicated that she had provided this information in February 2024 during her annual recertification. (AR 79-80, 81-82; see also AR 32-51 [Client Rebuttal Documents].) Petitioner represented that she had not made any profits from the business and that it was no longer in operation as of August 2024. (AR 78, 82.) As for failing to provide information regarding her debt, petitioner represented that it was an oversight on her part. (AR 82, 91-92.) As to her obligations under Section 8, petitioner and her daughter testified that petitioner was ignorant of what was expected of her. (AR 87-89.)

In

response to petitioner's testimony, Coppola stated that petitioner did not provide any evidence to counter HACLA's evidence that the cousin lived at the subsidized premises, such as a lease agreement, utility bill, or mail for a different address. (AR 86.) He also point out that, as head of household, petitioner was responsible for "providing true and correct information and also activity at the unit." (AR 86.) With respect to petitioner's pecuniary interest in the hair salon business, Coppola pointed out that no such information was provided by petitioner on the HAPP-27P Form she submitted in April 2023 and asserted that it was too late for petitioner to provide it over a year later in connection with the hearing. (AR 86.) Coppola also confirmed that petitioner's subsidy "stopped in April of 2023," but he claimed that "she's still a participant" in the program.[2] (AR 77.)

D.

Decision

On September 18, 2024, the Hearing

Officer upheld the termination of petitioner's Section 8 voucher based on fraud and rendered the termination effective October 31, 2024 ("Decision"). (AR 332-36.) In the Decision, the Hearing Officer summarized the evidence submitted

and testimony provided. (AR 332-34.) The Hearing Officer found that petitioner allowed an unauthorized tenant (Stephanie Andrews) to reside at the subsidized premises, that petitioner did not disclose her pecuniary interest in a business (Cosmotique, LLC), that petitioner did not reside at the subsidized premises and had moved elsewhere (5824 3rd Avenue, Los Angeles, CA 90043), and that petitioner committed fraud by failing to provide true and correct information on the HAPP-27P Eligibility Questionnaire.

(AR 333.) The Decision also concluded that petitioner owed HACL \$9,606 for housing subsidy overpayments made on her behalf. (AR 333.) On September 27, 2024, HACL sent a Notice of Termination of Section 8 letter to petitioner. (AR 331.)

E.

The
Petition for Writ of Mandate

On December 3, 2024, petitioner filed a Verified Petition for Writ of Mandate. On October 21, 2025, petitioner filed the operative Verified First Amended Petition for Writ of Mandate, after the Court sustained respondent's demurrer to the initial petition with leave to amend. On November 20, 2025, respondent filed an Answer.

On

January 16, 2026, respondent lodged the administrative record with the Court and provided notice that the administrative record had been certified. On April 1, 2026, petitioner filed an opening brief, entitled "1. Exhibit(s) 2. Opening Statement," which included a copy of a lease dated March 28, 2016. On April 30, 2026, respondent filed an opposition. On June 4, 2026, petitioner filed a reply, entitled "Petition to HACL's Opposition," as well as her own declaration. On June 8, 2026, petitioner filed a document entitled "Response to HACL's Opposition / Exhibit – Email Correspondence form Section 8 Advisor," which contained petitioner's "Supplemental Declaration" and various exhibits. On June 16, 2026, petitioner filed a document entitled "Exhibits to Plaintiff's [sic] Response to HACL's Opposition," with various exhibits attached thereto.

III. DISCUSSION

A.

Standard of Review

Under CCP § 1094.5(b), the pertinent issues are whether the respondent has proceeded without jurisdiction, whether there was a fair trial, and whether there was a prejudicial abuse of discretion. An abuse of discretion is established if the agency has not proceeded in the manner required by law, the decision is not supported by the findings, or the findings are not supported by the evidence. (CCP § 1094.5(b).)

A decision denying public assistance benefits affects a fundamental vested right. (Harlow v. Carleson (1976) 16 Cal.3d 731, 737 [“right of a welfare recipient to continued welfare benefits” is fundamental and vested].) Because the administrative decision substantially affects a fundamental vested right, the Court exercises its independent judgment on the record. (See Prentice v. Board of Admin. (2007) 157 Cal.App.4th 983, 988.) Under the independent judgment test, “the trial court not only examines the administrative record for errors of law, but also exercises its independent judgment upon the evidence disclosed in a limited trial de novo.” (Bixby v. Pierno (1971) 4 Cal.3d 130, 143.) The court must draw its own reasonable inferences from the evidence and make its own credibility determinations. (Morrison v. Housing Authority of the City of Los Angeles Board of Commissioners (2003) 107 Cal. App. 4th 860, 868.)

“In exercising its independent judgment, a trial court must afford a strong presumption of correctness concerning the administrative findings, and the party challenging the administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence.” (Fukuda v. City of Angels (1999) 20 Cal.4th 805, 817, internal quotations omitted.) A reviewing court “will not act as counsel for either party to an appeal and will not assume the task of initiating and prosecuting a search of the record for any purpose of discovering errors not pointed out in the briefs.” (Fox v. Erickson (1950) 99 Cal.App.2d 740, 742.)

B.

Petitioner

Improperly Relies on Extra-Record Evidence

As

a preliminary matter, the Court notes that petitioner relies on her own declaration and various exhibits. To the extent that any of these documents do not appear in the administrative record, the Court finds that petitioner improperly relies on extra-record evidence. "In an administrative mandamus action, judicial review is limited to matters in the administrative record. Additional evidence is admissible only if it was not available at the time of the administrative hearing or was excluded improperly from the record." (Evans v. Department of Motor Vehicles (1994) 21 Cal.App.4th 958, 977 [citing CCP § 1094.5(e)].) Notably, petitioner has not sought to augment the record pursuant to Code of Civil Procedure § 1095.4(e). Upon review of the documents, the Court observes that they largely consist of email correspondence and email attachments between plaintiff and HACLA prior to the informal hearing. Thus, such documents would have been available at the time of the administrative hearing. In addition, there is no argument or suggestion that these emails were improperly excluded from consideration at the hearing.

C.

The

Weight of the Evidence Supports the Decision to Terminate Petitioner's Housing Assistant Subsidy

Petitioner

contends that the Decision should be set aside because the administrative record shows that she did not commit fraud, arguing that she had not authorized anyone to reside at the subsidized premises and that she had submitted the required documents. (Pet. Br. at 1-2.) The Court disagrees.

Pursuant to Section 13.5.3 of the

HACLA Section 8 Administrative Plan, HACLA is permitted to terminate assistance to a participant where a preponderance of the evidence shows that the participant or any member of the participant's household has committed fraud in connection with the federal housing program. (AR 336.) As provided under Section 13.8.7, "fraud includes intentionally and willfully providing false or misleading information on any HACLA forms, such as forms that collect family composition and income information." (AR 31, 318.)

Section 13.8.5 of the HACLA Section

8 Administrative Plan also provides HACLA with the authority to terminate

housing assistance where the participant fails to meet any of the family obligations or family responsibilities. (AR 30, 334.) These obligations include providing true and complete information at each annual reexamination, not committing any fraud, notifying HACLA before moving out of a subsidized unit, and not allowing an unauthorized tenant to use the subsidized unit. (AR 29.)

Here, the weight of the evidence demonstrates that petitioner violated the family obligations and committed fraud. While petitioner claims that she had not yet been designated as the head-of-household, the administrative record shows that this designation occurred on August 1, 2022. (AR 283.) Due to this status, petitioner was responsible for ensuring compliance with the family obligations. (AR 87.) Thus, even though petitioner denied responsibility for allowing her cousin to reside at the subsidized premises and feigned any knowledge of her cousin's whereabouts (AR 67-72), HACLA provided petitioner with a warning letter on July 31, 2023 indicating that her cousin was improperly using the subsidized premises (AR 202, 282), which was many months before HACLA took any action against petitioner. The testimony of petitioner's daughter also revealed that she knew the cousin was an unauthorized tenant based on communications with the landlord. (AR 89-90.) Further, the underlying investigation revealed that the cousin was associated with the subsidized premises from April 2016 through August 2023. (AR 198, 271, 273-275.)

It is also undisputed that petitioner had a pecuniary interest in her hair salon business, Cosmotique LLC. (AR 80-82 [8/27/24 Hearing Transcript]; AR 236-241 [Documents re: Cosmotique LLC]; AR 256 [HAPP-27P Form].) While petitioner contends that she had disclosed this information (Pet. Br. at 1), her hearing testimony reveals that this information was only provided in February 2024, which is nearly a year after she had first submitted the HAPP-27P form.[3] (AR 79-80, 81-82; see also AR 32-51 [Client Rebuttal Documents].) Because the HAPP-27P form was executed under the penalty of perjury (AR 260), the Court finds that petitioner willfully provided misleading information to HACLA when she denied owning a business. (AR 256.)

Similarly, the weight of the evidence shows that petitioner failed to properly complete the HAPP-27P form by failing to disclose all income and debts. (AR 197, 248-52.) Petitioner acknowledged this failure during the informal hearing. (AR 91-93.) Petitioner also acknowledged that she did not reside at the subsidized

premises (AR 72-74.) Such acknowledgement contradicts petitioner's statement in the HAPP-27P listing the subsidized premises as her "Current Address." (AR 254.) This is a violation of 24 CFR § 982.551(h)(1), which states: "The family use the assisted unit for residence by the family. The unit must be the family's only residence." Thus, the Court finds that petitioner provided misleading information on the HAPP-27P form in this regard as well.

Notably, petitioner does not point to any evidence in the administrative record to support her position. Rather, she merely generally references the administrative record. It is petitioner's burden to point to evidence indicating that the weight of the evidence supports him. (Fukuda, 20 Cal.4th at 817.) Even if the Court were to consider the extra-record evidence, the Court finds that it does not alter the outcome. Primarily, the exhibits included by petitioner are not relevant. While the email communications suggest that petitioner tried to cooperate with HACLA's requests for information, such after-the-fact cooperation would not undermine the fact that petitioner included false information within her HAPP-27P form. As for petitioner's contention that any failure to provide the correct information was not intentional, the Court is not unpersuaded by such argument. Petitioner signed the form under penalty of perjury and thereby attested to the truth and completeness of the information therein, including information she surely knew was incorrect or incomplete, such as where she resided and whether she had an interest in a business.

Accordingly, the weight of the evidence supports HACLA's termination of petitioner's Section 8 voucher based on fraud. The petition is DENIED on this ground.

D.

The

Evidence Does Not Support a Determination that Petitioner Owes HACLA \$9,606 in Subsidy Payments

The

Decision also concludes that petitioner owes "HACLA \$9,606 in HAP payments made on your behalf from April 3, 2023 through the end of participation due to fraud." (AR 336.) The Court finds that this determination constitutes an abuse of discretion because it is not supported by the weight of the evidence or other findings in the Decision. (CCP § 1094.5(b).)

The

Decision found that petitioner's voucher subsidy for the subsidized premises ended in April 2023. (AR 336.) HCALA's investigator, Cappola, also testified that the subsidy ended in April 2023.[4]

(AR 77.) HACLA's note history also seems to indicate that no subsidy payments were made to petitioner during that period.

For example, the March 20, 2023 note indicates that a voucher packet was mailed out, and that on April 24, 2023, and May 20, 2023, the documents necessary for voucher payment were still not complete. (AR 282.) The June 14, 2023 note indicates that petitioner called to "follow up on voucher status," which would indicate no voucher payment had yet been made. (AR 282.)

An August 16, 2023 note similarly indicates that petitioner called "to follow up on voucher processing status." (AR 281.) An October 18, 2023 note states that "[v]oucher file is still incomplete and pending." (AR 281.) A January 5, 2024, note states that the landlord for the premises informed HACLA no rent had been paid for the premises since April 2023, suggesting no housing voucher had been issued from April 2023 onward. (AR 280.) A February 14, 2024 again indicates that "[v]oucher file still pending" submission of additional information. (AR 280.) Likewise, a March 7, 2024 note states that petitioner again called "to get an update on her voucher request." (AR 279.) Finally, on March 25, 2024, there is a note stating "[v]oucher issued. (AR 279.)

The

above-described evidence does not support a finding that HACLA made payments totaling \$9,606 on petitioner's behalf from April 2023 through the end of her participation. The only submitted evidence suggesting any such payments were made was a document entitled "Loss to HACLA," which contains a chart listing monthly payments purportedly made from HACLA on petitioner's behalf for the period April 3, 2023 through February 1, 2024. (AR 288.) However, neither Cappola's investigative report nor his testimony explain how any of the information contained in this document was gathered. (AR 63, 198.) Given the lack of foundation for this document and its inconsistencies with the above-described evidence, the Court affords it little weight, if any.

Accordingly,

the Court finds that it was an abuse of discretion to determine that petitioner is liable for any purported subsidy overpayments when it is not supported by the findings in the Decision or the weight of the evidence in the

administrative record.

IV. CONCLUSION

For the foregoing reasons, the Court DENIES the petition for writ of mandamus insofar as it seeks to set aside the decision terminating her participation in the Section 8 Program and GRANTS the petition as to that portion of the Decision finding that petitioner owes respondent \$9,606 for overpayment of housing assistance payments made on her behalf.

Pursuant to Local Rule 3.231(n), respondent shall prepare, serve, and ultimately file a proposed judgment consistent herewith.

[1] On July 31, 2023, HACLA issued a warning letter to petitioner for vacating and subletting the subsidized unit to her cousin Stephanie Andrews. (AR 202, 282.)

[2] Per HACLA's note history, a voucher was not issued until March 25, 2024, and it was for a lease effective March 20, 2024. (AR 279.) The notes later indicate that petitioner moved out in April 2024. (AR 279.)

[3] As indicated by Coppola during the hearing, any change in income information must be submitted within 30 days. (AR 88, See also, Admin. Plan 12.3.3.2.)

[4] Coppola stated that petitioner was "still a participant" in the Section 8 Program but did not explain what he meant by that, particularly in light of his express acknowledgment that petitioner's subsidy ended in April 2023. (AR 77.)